

Vivekanand Tiwari v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 February 2022 · Writ-C No. 3698 of 2022 · **Writ disposed without merits; clause 6.8 objection directed with stay of coercive action and restoration on deposit.**

HEADNOTE

A writ seeking to quash a section 126 provisional assessment and show-cause notice, and to recast bills under clause 6.8, is disposed of without opinion on merits. The consumer may file a clause 6.8 objection within a week; the assessing officer shall pass a speaking reasoned order after hearing within two weeks. Coercive action is stayed for three weeks or till disposal of the objection, whichever is earlier. Connection may be restored on deposit of dues and completion of formalities if there is no legal impediment.

FACTUAL SUMMARY

Vivekanand Tiwari challenged a 15 November 2021 provisional assessment notice of Rs.1,76,575 and a 4 December 2021 show-cause notice issued by the Executive Engineer, Electricity Urban Distribution Division, Rambagh, Prayagraj, and sought recasting of outstanding bills under clause 6.8 of the U.P. Electricity Supply Code, 2005 read with section 126 of the Electricity Act, 2003. The licensee's counsel stated that an objection could be filed and would be decided after hearing, without coercive action until then.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment

HOLDING

Without expressing any opinion on merits, a writ challenging a section 126 provisional assessment and show-cause notice is disposed of by permitting the consumer to submit a clause 6.8 objection within a week; the assessing officer shall consider it and pass a speaking and reasoned order in accordance with law within two weeks after reasonable opportunity of hearing. Coercive action is stayed for three weeks or till disposal of the objection, whichever is earlier. On deposit of dues and completion of necessary formalities the connection shall be restored in accordance with law if there is no legal impediment. ¶ 1-2

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Petitioner given liberty to file a clause 6.8 objection to the provisional assessment within a week; respondent no.3 to pass a speaking reasoned order after hearing within two weeks; coercive action stayed for three weeks or till disposal, whichever is earlier. ¶ 1-2

para-6.8-objection-alternate-remedy Writ against the provisional assessment and show-cause notice disposed of without merits by relegating the consumer to the clause 6.8 objection before the assessing officer. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 15 NOVEMBER 2021 PROVISIONAL ASSESSMENT AND 4 DECEMBER 2021 SHOW-CAUSE NOTICE, AND CORRECTION OF OUTSTANDING BILLS

Court expressly declined to opine on merits. ¶ 1-2